HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

FROM COMPANY SOVEREIGNTY TO → WHO CONTROLLED WHOM: THE → 1773-1853: REGULATION, MONOPOLY AND → REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919 → THE 1935 CONSTITUTIONAL MACHINE → 1935 INHERITANCE: RETAINED, TRANSFORMED

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◉ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g14 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

00

STAGE 00

FROM COMPANY SOVEREIGNTY TO CONSTITUENT SOVEREIGNTY, 1765-1950

FROM COMPANY SOVEREIGNTY TO CONSTITUENT SOVEREIGNTY, 1765-1950 · 1765 DIWANI · REVENUE POWER OUTRUNS PUBLIC ACCOUNTABILITY · 1773 PARLIAMENTARY REGULATION · REGULATING ACT · GOVERNOR-GENERAL OF BENGAL · CALCUTTA SUPREME COURT · 1781 JURISDICTION REPAIR

1765 DIWANI: revenue power outruns public accountability → 1773 PARLIAMENTARY REGULATION → Regulating Act → Governor-General of Bengal → Calcutta Supreme Court → 1781 JURISDICTION REPAIR → 1784 DUAL CONTROL → Settlement Act Company administration + Board supervision

CONSTITUTIONAL BASIS / ARTICLE
- 1765 DIWANI: revenue power outruns public accountability
- 1773 PARLIAMENTARY REGULATION
- Regulating Act → Governor-General of Bengal → Calcutta Supreme Court

POWER / PROCEDURE
- 1781 JURISDICTION REPAIR → 1784 DUAL CONTROL
- Settlement Act Company administration + Board supervision
- 1813-1853 CHARTER TRANSFORMATION monopoly opened → Company de-commercialised → legislation centralised

CHECK / LIMIT
- 1858 CROWN RULE → 1861-1892 ASSOCIATION WITHOUT RESPONSIBILITY
- 1909 COMMUNAL REPRESENTATION → 1919 LIMITED RESPONSIBILITY
- 1935 FEDERAL BLUEPRINT + PROVINCIAL AUTONOMY

FEDERAL / RIGHTS IMPACT
- 1947 SOVEREIGN CONSTITUENT POWER → 1950 DEMOCRATIC CONSTITUTIONALISM

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The historical background of the Constitution is the gradual conversion of a revenue-seeking Company state into a centralised colonial administration and, finally, a sovereign democratic Constitution.

01

STAGE 01

WHO CONTROLLED WHOM: THE IMPERIAL POWER HIERARCHY

WHO CONTROLLED WHOM · THE IMPERIAL POWER HIERARCHY · BRITISH PARLIAMENT · BEGINS STATUTORY CONTROL OVER TERRITORIAL COMPANY RULE · CREATES BOARD OF CONTROL FOR POLITICAL SUPERVISION · +-- BOARD OF CONTROL · CIVIL, MILITARY AND REVENUE DIRECTION · +-- COURT OF DIRECTORS

BRITISH PARLIAMENT

1773: begins statutory control over territorial Company rule → 1784: creates Board of Control for political supervision → +-- BOARD OF CONTROL: civil, military and revenue direction

CONSTITUTIONAL BASIS / ARTICLE
- BRITISH PARLIAMENT
- 1773: begins statutory control over territorial Company rule
- 1784: creates Board of Control for political supervision

POWER / PROCEDURE
- +-- BOARD OF CONTROL: civil, military and revenue direction
- +-- COURT OF DIRECTORS: Company administration and patronage
- 1858: abolishes Company government

CHECK / LIMIT
- SECRETARY OF STATE FOR INDIA: Cabinet responsibility
- +-- COUNCIL OF INDIA: advisory assistance
- GOVERNOR-GENERAL = VICEROY: Crown representative in India provincial governments

FEDERAL / RIGHTS IMPACT
- POWER SHIFT
- Company charter → parliamentary supervision → Crown executive responsibility
- LIMIT: accountability moved to Britain; responsible government in India did not follow.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Regulating Act 1773 began parliamentary control, executive centralisation and judicialisation, but it left Company government without popular responsibility.

02

STAGE 02

1773-1853: REGULATION, MONOPOLY AND CENTRALISATION COMPARED

REGULATION, MONOPOLY AND CENTRALISATION COMPARED · ACT CONTROL · ECONOMY INSTITUTIONAL RESULT · 1773 PARLIAMENT REGULATES GG OF BENGAL; CALCUTTA SUPREME COURT · 1781 JURISDICTION CLARIFIED EXECUTIVE-REVENUE SPHERE PROTECTED · 1784 POLITICAL CONTROL SEPARATED BOARD OF CONTROL; DUAL CONTROL · 1813 INDIA TRADE MONOPOLY ENDS SOVEREIGNTY ASSERTED; EDUCATION GRANT · 1833 ALL COMPANY TRADE ENDS GG OF INDIA; LEGISLATIVE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ACT CONTROL / ECONOMY INSTITUTIONAL RESULT	1784 political control separated Board of Control; dual control	Company becomes administrative first Law Commission; no open competition yet	1784 political control separated Board of Control; dual control
1773 Parliament regulates GG of Bengal; Calcutta Supreme Court	1813 India trade monopoly ends sovereignty asserted; education grant	1853 charter not renewed for term legislative-executive functions differentiated patronage principle weakened competition route prepared	
1781 jurisdiction clarified executive-revenue sphere protected	1833 all Company trade ends GG of India; legislative centralisation	EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.	

CONSTITUTIONAL BASIS / ARTICLE
- ACT CONTROL / ECONOMY INSTITUTIONAL RESULT
- 1773 Parliament regulates GG of Bengal; Calcutta Supreme Court
- 1781 jurisdiction clarified executive-revenue sphere protected

POWER / PROCEDURE
- 1784 political control separated Board of Control; dual control
- 1813 India trade monopoly ends sovereignty asserted; education grant
- 1833 all Company trade ends GG of India; legislative centralisation

CHECK / LIMIT
- Company becomes administrative first Law Commission; no open competition yet
- 1853 charter not renewed for term legislative-executive functions differentiated patronage principle weakened competition route prepared
- EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

FEDERAL / RIGHTS IMPACT
- 1784 political control separated Board of Control; dual control

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Charter Acts 1793 and 1813 show that monopoly could be renewed even as Crown sovereignty and regulated commercial opening advanced.

03

STAGE 03

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919 · NOMINATION NOMINATED INDIAN NON-OFFICIALS; PORTFOLIO SYSTEM RECOGNISED LEGISLATIVE DECENTRALISATION · SCRUTINY BUDGET DISCUSSION AND QUESTIONS INDIRECT-ELECTION ELEMENT; OFFICIAL MAJORITIES · REPRESENTATION SEGMENTED SEPARATE ELECTORATES FOR MUSLIMS LARGER COUNCILS; INDIAN · RESPONSIBILITY DIVIDED PROVINCIAL DYARCHY · RESERVED VERSUS TRANSFERRED SUBJECTS CENTRAL BICAMERALISM; DIRECT ELECTIONS AND

1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility → 1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained → 1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils → Indian on Viceroy's Executive Council executive still not responsible to legislature → 1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism

CONSTITUTIONAL BASIS / ARTICLE
- 1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility
- 1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

POWER / PROCEDURE
- 1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils
- Indian on Viceroy's Executive Council executive still not responsible to legislature

CHECK / LIMIT
- 1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism
- direct elections and limited franchise ministers lacked decisive coercive and fiscal levers

FEDERAL / RIGHTS IMPACT
- 1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility
- 1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Councils Acts of 1861 and 1892 widened Indian association and legislative scrutiny, yet official majorities ensured that consultation did not become responsible government.

04

STAGE 04

THE 1935 CONSTITUTIONAL MACHINE: PROMISE AND SAFEGUARDS

THE 1935 CONSTITUTIONAL MACHINE · PROMISE AND SAFEGUARDS · GOVERNMENT OF INDIA ACT 1935 · ALL-INDIA FEDERATION · PROVINCES + PRINCELY STATES · +-- NEVER COMMENCED BECAUSE REQUIRED PRINCELY ACCESSION FAILED · LEGISLATIVE DISTRIBUTION · +-- FEDERAL LIST 59

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION: provinces + princely states → +-- never commenced because required princely accession failed → LEGISLATIVE DISTRIBUTION

CONSTITUTIONAL BASIS / ARTICLE
- GOVERNMENT OF INDIA ACT 1935
- ALL-INDIA FEDERATION: provinces + princely states
- +-- never commenced because required princely accession failed
- LEGISLATIVE DISTRIBUTION

POWER / PROCEDURE
- +-- Federal List 59
- Provincial List 54
- Concurrent List 36
- +-- residuary allocation vested in Governor-General

CHECK / LIMIT
- +-- dyarchy abolished → provincial autonomy
- +-- ministers responsible to provincial legislatures
- CENTRE: proposed dyarchy; not brought into operation
- INSTITUTIONS: Federal Court 1937

FEDERAL / RIGHTS IMPACT
- bicameral provinces
- SAFEGUARDS: discretion, special responsibilities and reserved powers
- VERDICT: autonomy was enlarged inside an imperial veto structure.

MECHANISM / VERDICT — VERDICT: autonomy was enlarged inside an imperial veto structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Government of India Act 1935 designed an all-India federation and provincial autonomy, but the federation never became operational before independence.

05

STAGE 05

1935 INHERITANCE: RETAINED, TRANSFORMED, REJECTED

1935 INHERITANCE · RETAINED, TRANSFORMED, REJECTED · 1935 DEVICE 1950 TREATMENT · THREE LEGISLATIVE LISTS RETAINED; REDISTRIBUTED UNDER SEVENTH SCHEDULE · FEDERAL COURT TRANSFORMED INTO SUPREME COURT WITH WIDER REVIEW · PROVINCIAL AUTONOMY RETAINED AS ELECTED STATE GOVERNMENT · PUBLIC SERVICE COMMS. CONSTITUTIONALISED FOR UNION AND STATES · EMERGENCY MACHINERY RETAINED BUT SUBJECTED TO CONSTITUTIONAL PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
1935 DEVICE 1950 TREATMENT	Provincial autonomy retained as elected State government	Governor's office retained; democratic responsibility replaces imperial command	universal adult suffrage ruler safeguards → enforceable rights and judicial review
Three legislative lists retained; redistributed under Seventh Schedule	Public Service Comms. constitutionalised for Union and States	All-India Services retained as an integrating administrative instrument	
Federal Court transformed into Supreme Court with wider review	Emergency machinery retained but subjected to constitutional procedure	REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty communal electorates → common electoral citizenship limited franchise →	

CONSTITUTIONAL BASIS / ARTICLE
- 1935 DEVICE 1950 TREATMENT
- Three legislative lists retained; redistributed under Seventh Schedule
- Federal Court transformed into Supreme Court with wider review

POWER / PROCEDURE
- Provincial autonomy retained as elected State government
- Public Service Comms. constitutionalised for Union and States
- Emergency machinery retained but subjected to constitutional procedure

CHECK / LIMIT
- Governor's office retained; democratic responsibility replaces imperial command
- All-India Services retained as an integrating administrative instrument
- REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty communal electorates → common electoral citizenship limited franchise →

FEDERAL / RIGHTS IMPACT
- universal adult suffrage ruler safeguards → enforceable rights and judicial review

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative control widened from centralisation to scrutiny; executive accountability moved from corporate to imperial control before becoming democratic only after independence.

06

STAGE 06

1947 BRIDGE: DOMINION LEGALITY TO REPUBLICAN AUTHORITY

1947 BRIDGE · DOMINION LEGALITY TO REPUBLICAN AUTHORITY · INDIAN INDEPENDENCE ACT 1947 · BRITISH RULE ENDS; INDIA AND PAKISTAN BECOME DOMINIONS · BRITISH PARLIAMENTARY AUTHORITY OVER THE NEW DOMINIONS ENDS PRINCELY-STATE · CONSTITUENT ASSEMBLY BECOMES SOVEREIGN CONSTITUTION-MAKER · ASSEMBLY ALSO ACTS AS DOMINION LEGISLATURE · TRANSITIONAL GOVERNMENT EXISTING LAW AND ADMINISTRATION CONTINUE UNLESS ALTERED

INDIAN INDEPENDENCE ACT 1947 → British rule ends; India and Pakistan become Dominions → British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic → Constituent Assembly becomes sovereign constitution-maker → Assembly also acts as Dominion legislature

CONSTITUTIONAL BASIS / ARTICLE
- INDIAN INDEPENDENCE ACT 1947
- British rule ends; India and Pakistan become Dominions
- British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic absorption

POWER / PROCEDURE
- Constituent Assembly becomes sovereign constitution-maker
- Assembly also acts as Dominion legislature
- TRANSITIONAL GOVERNMENT existing law and administration continue unless altered

CHECK / LIMIT
- 26 NOV 1949: Constitution adopted
- 24 JAN 1950: members sign
- 26 JAN 1950: Constitution commences; republic replaces dominion status

FEDERAL / RIGHTS IMPACT
- BRIDGE: legal continuity prevented a vacuum; constituent power changed authority's source.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Independence Act 1947 ended British sovereignty and paramountcy and made the Constituent Assemblies sovereign legislatures, but left integration and constitution-making to Indian agency.

07

STAGE 07

COLONIAL REFORM: OFFICIAL MOTIVE VERSUS INDIAN PRESSURE

COLONIAL REFORM · OFFICIAL MOTIVE VERSUS INDIAN PRESSURE · OFFICIAL PROBLEM IMPERIAL RESPONSE · COMPANY ABUSE · FISCAL-CRISIS PARLIAMENTARY REGULATION, NOT SELF-GOVERNMENT ADMINISTRATIVE OVERLOAD CENTRALISATION · INDIAN COUNTER-PRESSURE ASSOCIATIONS · CONGRESS DEMANDS · HOME RULE

CONSTITUTIONAL BASIS / ARTICLE
- OFFICIAL PROBLEM IMPERIAL RESPONSE
- Company abuse / fiscal crisis parliamentary regulation, not self-government administrative overload centralisation, codification, specialised services nationalist representation councils,

POWER / PROCEDURE
- limited elections, controlled devolution mass political pressure graded responsibility with vetoes and safeguards communal bargaining separate electorates and
- group arrangements

CHECK / LIMIT
- INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation
- British policy designed controlled adaptation to preserve authority.

FEDERAL / RIGHTS IMPACT
- Indian politics converted concessions into platforms for further claims.
- Reform was neither a unilateral gift nor a linear march to democracy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Colonial constitutional reform was neither a linear gift nor a single nationalist victory: British control incentives and Indian political pressure interacted, while authority remained deliberately short of popular sovereignty.

08

STAGE 08

HISTORICAL-BACKGROUND CLOSE-OPTION CONTROL BOARD

HISTORICAL-BACKGROUND CLOSE-OPTION CONTROL BOARD · CLAIM TO TEST EXACT CONTROL · 1773 CREATED GOVERNOR-GENERAL OF INDIA NO · GOVERNOR-GENERAL OF BENGAL · 1784 TRANSFERRED INDIA TO CROWN RULE NO · DUAL CONTROL; CROWN RULE BEGINS IN 1858 · 1813 ENDED EVERY COMPANY MONOPOLY NO · TEA AND CHINA TRADE EXCEPTIONS REMAINED

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CLAIM TO TEST EXACT CONTROL	1813 ended every Company monopoly No: tea and China trade exceptions remained	1892 made executive legislature-dependent No: scrutiny without responsibility	1935 federation operated No: federal part never commenced
1773 created Governor-General of India No: Governor-General of Bengal	1833 introduced open civil-service exam No: principle opened; competition came later	1909 began responsible government No: representation widened, executive insulated	1935 created RBI directly RBI Act 1934; operations began in 1935
1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858	1861 introduced elected representation No: nominated Indian non-officials	1919 put dyarchy at Centre No: provincial dyarchy	1947 automatically integrated princes No: suzerainty lapsed; integration followed

CONSTITUTIONAL BASIS / ARTICLE
- CLAIM TO TEST EXACT CONTROL
- 1773 created Governor-General of India No: Governor-General of Bengal
- 1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858

POWER / PROCEDURE
- 1813 ended every Company monopoly No: tea and China trade exceptions remained
- 1833 introduced open civil-service exam No: principle opened; competition came later
- 1861 introduced elected representation No: nominated Indian non-officials

CHECK / LIMIT
- 1892 made executive legislature-dependent No: scrutiny without responsibility
- 1909 began responsible government No: representation widened, executive insulated
- 1919 put dyarchy at Centre No: provincial dyarchy

FEDERAL / RIGHTS IMPACT
- 1935 federation operated No: federal part never commenced
- 1935 created RBI directly RBI Act 1934; operations began in 1935
- 1947 automatically integrated princes No: suzerainty lapsed; integration followed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 1909 reforms widened representation by institutionalising religious separation, making separate electorates both a concession and a constitutional warning.

09

STAGE 09

EXACT 10/15-MARK ARCHITECTURE: EVOLUTION INTO THE 1950 CONSTITUTION

EXACT 10/15-MARK ARCHITECTURE · EVOLUTION INTO THE 1950 CONSTITUTION · 10 MARKS · 150 WORDS · 1. THESIS · COLONIAL STATUTES BUILT MACHINERY; 1950 CHANGED ITS SOVEREIGN BASIS. · 2. THREE PHASES · 1773-1858 CONTROL; 1861-1919 REPRESENTATION; 1935 BLUEPRINT. · 3. EVIDENCE: ONE EXACT ACT-FEATURE PAIR FROM EACH PHASE. · 4. PIVOT: 1947 TRANSFERRED CONSTITUENT AUTHORITY AND PRESERVED LEGAL CONTINUITY. · 5. COMPARE RETAINED DEVICES WITH REJECTED IMPERIAL PRINCIPLES. · 6. ADD INDIAN PRESSURE VERSUS BRITISH CONTROLLED ADAPTATION. · 7. CONCLUDE: INHERITANCE SUPPLIED INSTRUMENTS, NOT CONSTITUTIONAL LEGITIMACY.

10 MARKS / 150 WORDS → 1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis. → 2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint. → 3. Evidence: one exact Act-feature pair from each phase. → 4. Pivot: 1947 transferred constituent authority and preserved legal continuity.

CONSTITUTIONAL BASIS / ARTICLE
- 10 MARKS / 150 WORDS
- 1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis.
- 2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint.
- 3. Evidence: one exact Act-feature pair from each phase.

POWER / PROCEDURE
- 4. Pivot: 1947 transferred constituent authority and preserved legal continuity.
- 5. Verdict: structural continuity plus democratic rupture.
- 15 MARKS / 250 WORDS
- 1. Open with Diwani power-accountability mismatch.

CHECK / LIMIT
- 2. Trace control: 1773 → 1784 → 1858.
- 3. Trace participation: 1861 → 1892 → 1909 → 1919.
- 4. Explain 1935 lists, autonomy, institutions and safeguards.
- 5. Compare retained devices with rejected imperial principles.

FEDERAL / RIGHTS IMPACT
- 6. Add Indian pressure versus British controlled adaptation.
- 7. Conclude: inheritance supplied instruments, not constitutional legitimacy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Constitution retained and transformed colonial machinery - lists, Governors, courts and services - while rejecting communal electorates, restricted franchise and imperial supremacy.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 0. FRAME · PART A — COMPANY RULE (1773–1858) · PART B — CROWN RULE (1858–1947) · QUICK "FIRSTS" TABLE (PRELIMS GOLD) · UPSC TRAPS · WHY IT MATTERS · MAINS ANGLES

OPTIONAL DOCTRINE / CASE
- 0. Frame
- PART A — COMPANY RULE (1773–1858)
- PART B — CROWN RULE (1858–1947)
- Quick "FIRSTS" table (Prelims gold)

ADVANCED LIMIT
- UPSC Traps
- Why it matters / relevance
- Mains angles
- Advanced synthesis — criticisms, replies and final evaluation

COMPARATIVE NUANCE
- NOT: Regulating Act created GG of India → GG of Bengal ; GG of India came with Charter Act 1833 .
- NOT: 1853 abolished Company → Company abolished by GoI Act 1858
- NOT: Morley-Minto (1909) introduced dyarchy → dyarchy = 1919 ; 1909 = communal electorate.
- NOT: 1919 introduced provincial autonomy → that's 1935 ; 1919 = dyarchy.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels